

POWER PURCHASE AGREEMENT

Between

SolarPeak Energy, LLC ("Seller")

and

Pacific Northwest Utilities Corporation ("Buyer")

Effective Date: March 15, 2025

Contract No: PPA-2025-OR-0347

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ARTICLE 1 — DEFINITIONS AND INTERPRETATION

1.1 "Commercial Operation Date" or "COD" means June 1, 2026, the date on which the Facility achieves commercial operation as certified by the Independent Engineer.

1.2 "Contract Price" means \$42.50 per MWh of Net Energy Output delivered to the Delivery Point, subject to the Annual Escalation as set forth in Article 4.

1.3 "Annual Escalation" means 2.0% per annum, compounding annually, beginning on the first anniversary of the COD.

1.4 "Facility" means the 150 MW (AC nameplate) photovoltaic solar generating facility to be constructed on approximately 800 acres in Benton County, Oregon (Assessor's Parcel Nos. 08-234-001 through 08-234-047).

1.5 "Expected Annual Generation" means 350,000 MWh per Contract Year, based on the P50 solar resource estimate prepared by DNV.

1.6 "Guaranteed Minimum Generation" means 280,000 MWh per Contract Year (80% of Expected Annual Generation). Failure to achieve Guaranteed Minimum Generation for two consecutive Contract Years constitutes a Seller Default.

1.7 "Term" means 25 Contract Years from the COD, unless earlier terminated in accordance with Article 10.

1.8 "Delivery Point" means the metering point at the BPA Transmission interconnection at the McNary 230kV substation (Point of Interconnection ID: BPA-MCN-230-047).

1.9 "Net Energy Output" means all electrical energy produced by the Facility and delivered to the Delivery Point, net of station service, losses, and curtailment.

1.10 "Curtailment" means any reduction in generation directed by Buyer, the Transmission Provider, or the Reliability Coordinator. Economic curtailment by Seller is not Curtailment.

ARTICLE 2 — SALE AND PURCHASE OF ENERGY

2.1 During the Term, Seller shall sell and deliver to Buyer, and Buyer shall purchase and accept from Seller, all Net Energy Output generated by the Facility and delivered to the Delivery Point.

2.2 Buyer shall not be required to accept energy in excess of the Facility's nameplate capacity (150 MW AC) during any settlement interval.

2.3 Title and risk of loss for Net Energy Output shall pass from Seller to Buyer at the Delivery Point.

ARTICLE 3 — PROJECT DEVELOPMENT AND CONSTRUCTION

3.1 Capital Expenditure Breakdown:

Component	Amount (USD)	% of Total
Solar Modules (Tier 1 bifacial)	\$82,500,000	44%
Inverters and Electrical BOS	\$28,125,000	15%
Racking, Civil, Balance of System	\$37,500,000	20%
Transmission Interconnection	\$18,750,000	10%
Soft Costs (permitting, legal, insurance)	\$20,625,000	11%
Total CapEx	\$187,500,000	100%

3.2 Annual O&M;: \$2,250,000 per year, escalating at 1.5% per annum.

3.3 Construction Period: 18 months (December 2024 through May 2026).

3.4 Module Specifications: LONGi Hi-MO 7, 580W bifacial, 22.5% efficiency, 30-year linear power warranty (87.4% at Year 25).

ARTICLE 4 — CONTRACT PRICE AND PAYMENT

4.1 Buyer shall pay Seller the Contract Price for each MWh of Net Energy Output delivered:

Year	Price (\$/MWh)	Annual Revenue (\$)	Cumulative Revenue (\$)
1	\$42.50	\$14,875,000	\$14,875,000
2	\$43.35	\$15,172,500	\$30,047,500
3	\$44.22	\$15,475,950	\$45,523,450
4	\$45.10	\$15,785,469	\$61,308,919
5	\$46.00	\$16,101,178	\$77,410,097
6	\$46.92	\$16,423,202	\$93,833,299
7	\$47.86	\$16,751,666	\$110,584,965
8	\$48.82	\$17,086,699	\$127,671,665
9	\$49.80	\$17,428,433	\$145,100,098
10	\$50.79	\$17,777,002	\$162,877,100
11	\$51.81	\$18,132,542	\$181,009,642
12	\$52.84	\$18,495,193	\$199,504,835
13	\$53.90	\$18,865,097	\$218,369,931
14	\$54.98	\$19,242,399	\$237,612,330
15	\$56.08	\$19,627,247	\$257,239,577
16	\$57.20	\$20,019,792	\$277,259,368
17	\$58.34	\$20,420,187	\$297,679,556
18	\$59.51	\$20,828,591	\$318,508,147
19	\$60.70	\$21,245,163	\$339,753,310
20	\$61.91	\$21,670,066	\$361,423,376
21	\$63.15	\$22,103,468	\$383,526,843
22	\$64.42	\$22,545,537	\$406,072,380
23	\$65.70	\$22,996,448	\$429,068,828
24	\$67.02	\$23,456,377	\$452,525,204
25	\$68.36	\$23,925,504	\$476,450,708

ARTICLE 5 — REVENUE AND FINANCIAL PROJECTIONS

5.1 Key Financial Metrics:

Metric	Value
Weighted Average Contract Price (25-yr)	\$54.42/MWh
Total Contract Value (undiscounted)	\$476,136,985
Total Contract Value (NPV at 8%)	\$198,547,230
Project IRR (unlevered)	9.8%
Equity IRR (60/40 D/E, 5.5% debt)	14.2%
DSCR (minimum)	1.35x
DSCR (average)	1.82x
Payback Period	11.2 years
LCOE	\$38.75/MWh

ARTICLE 6 — CREDIT SUPPORT AND SECURITY

- 6.1 Seller Performance Bond: \$15,000,000
- 6.2 Buyer Letter of Credit: \$10,000,000
- 6.3 Termination Payment: lesser of \$25,000,000 or NPV of remaining payments at 8%.
- 6.4 Security interest in all Facility assets, RECs, and contract revenues.

ARTICLE 7 — ENVIRONMENTAL ATTRIBUTES

- 7.1 All RECs generated by the Facility are included in the Contract Price.
- 7.2 Estimated REC Value: \$3.50/MWh (Oregon I-937 RPS compliance).
- 7.3 Carbon Offset: ~175,000 metric tons CO₂/year (0.5 tCO₂/MWh grid factor).
- 7.4 Buyer receives all environmental attributes for RPS compliance.

ARTICLE 8 — INSURANCE REQUIREMENTS

- 8.1 Commercial General Liability: \$5,000,000/occurrence
- 8.2 Property/All-Risk: Full replacement value
- 8.3 Business Interruption: 12 months projected revenue
- 8.4 Workers' Compensation: Per Oregon law
- 8.5 Umbrella/Excess: \$10,000,000

ARTICLE 9 — FORCE MAJEURE

- 9.1 Definition: Acts of God, war, terrorism, pandemic, government action, grid failure, or other events beyond reasonable control.
- 9.2 Excused performance for duration of Force Majeure event.
- 9.3 If Force Majeure exceeds 365 consecutive days, either party may terminate.
- 9.4 Climate-related events (wildfire, extreme heat) are Force Majeure if they result in grid curtailment or facility damage.

ARTICLE 10 — DISPUTE RESOLUTION

- 10.1 Governing Law: State of Oregon
- 10.2 Arbitration: AAA Commercial Arbitration Rules, Portland, Oregon
- 10.3 Limitation of Liability: \$50,000,000 aggregate per party
- 10.4 Consequential damages waiver (except for willful misconduct)

SIGNATURES

IN WITNESS WHEREOF, the Parties have executed this Agreement.

SolarPeak Energy, LLC

Pacific Northwest Utilities Corp.

Sarah Chen, CEO

Date: March 15, 2025

James Rodriguez, VP Procurement

Date: March 15, 2025